

General Knowledge

Indian Polity

STUDY NOTES

Historical Background of the Indian Constitution

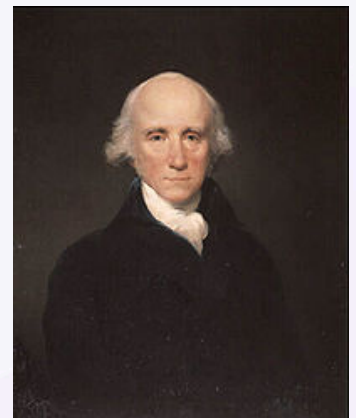


Introduction

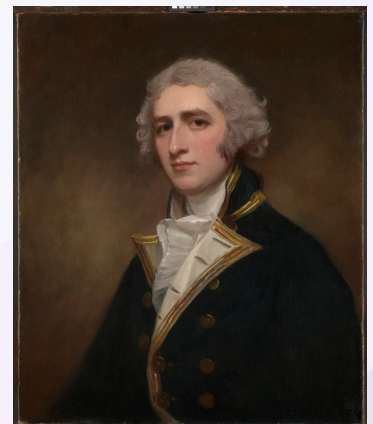
- The British first arrived in India in **1600** as traders, under the banner of the **East India Company**.
- The Company was granted exclusive trading rights in India by a charter issued by **Queen Elizabeth I**.
- In 1765, the Company transitioned from being a purely commercial entity to a territorial power by acquiring the '**Diwani**' rights (revenue collection and civil justice) for **Bengal, Bihar, and Orissa**.
- Following the **Sepoy Mutiny of 1857**, the British Crown assumed direct control of India in 1858, ending Company rule.
- The British rule continued until India's independence on **August 15, 1947**.
- The need for a Constitution arose after independence, leading to the formation of the **Constituent Assembly in 1946**, with the Indian Constitution coming into effect on January 26, 1950.
- Several features of India's Constitution and governance have their roots in the British colonial legal and administrative framework.
- These developments, organized chronologically, are divided into two key phases:
 - The Company Rule (1773–1858)
 - The Crown Rule (1858–1947)

The Company Rule (1773–1858)

- **Regulating Act of 1773:**
 - First step to regulate the East India Company by the British Government.
 - Recognized the company's **political and administrative functions**.
 - Created the position of **Governor-General of Bengal** (Lord Warren Hastings was the first).
 - **Executive Council of four** created to assist the Governor-General.
 - **Governor-General** was made superior to governors of Bombay and Madras.
 - Established a **Supreme Court in Calcutta** (1774) with one Chief Justice and three judges.
 - Prohibited Company servants from private trade and accepting bribes.

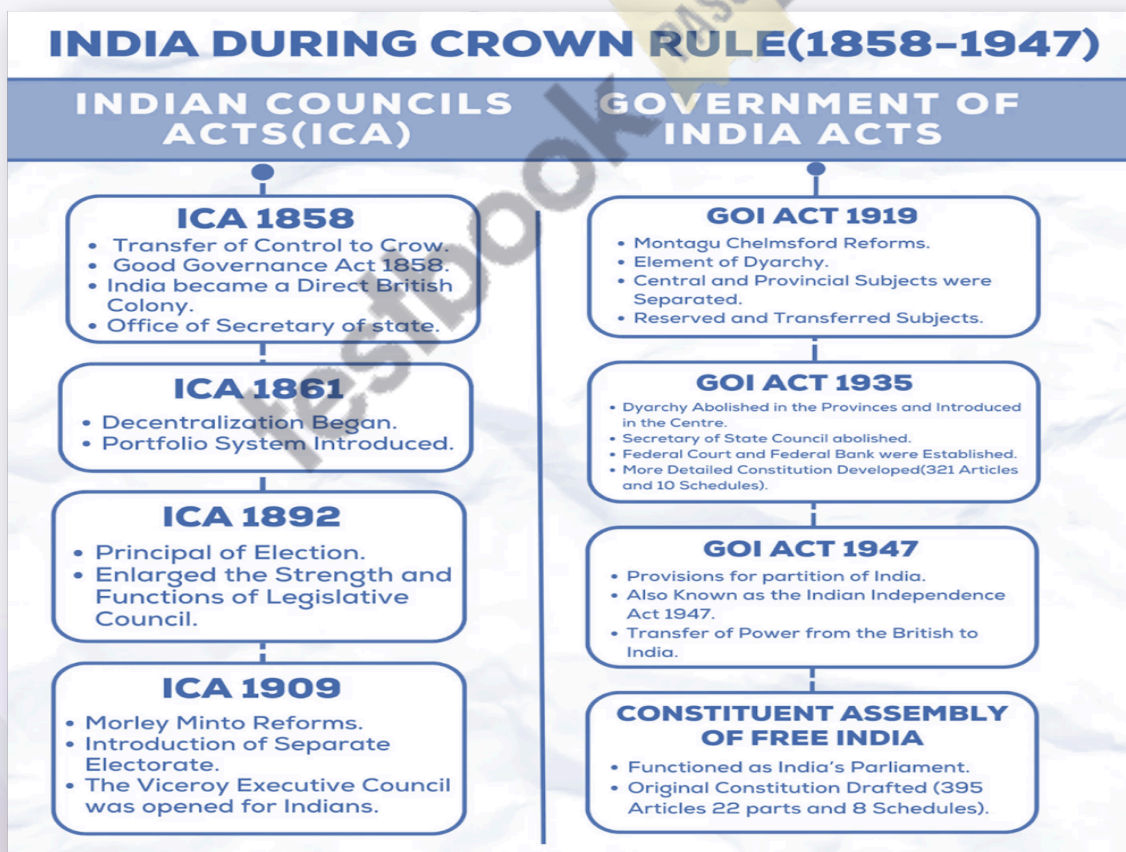


- The Court of Directors had to report revenue, civil, and military affairs to the British Government.
- **Amending Act of 1781 (Act of Settlement):**
 - Limited the Supreme Court's jurisdiction over the Governor-General and Council in official capacities.
 - Excluded **revenue matters** from Supreme Court jurisdiction.
 - **The personal law** of Hindus and Muslims was recognized in the legal system.
- **Pitt's India Act of 1784:**
 - Distinguished between **commercial** and **political** functions of the company.
 - Created a **Board of Control** to supervise political affairs, establishing a **double government**.
 - The **Court of Directors** managed commercial affairs, while the Board of Control oversaw political operations.
 - The territories of the company were called '**British possessions in India**'.
- **Charter Act of 1793:**
 - Extended the **Company's trade monopoly** for another 20 years.
 - Gave **Governor-General overriding powers** over the Councils of Bombay and Madras.
 - Allowed the Governor-General to override his council in special cases.
- **Charter Act of 1813:**
 - Ended the Company's trade monopoly except for trade with tea and China.
 - Asserted the **British Crown's sovereignty** over the company's territories.
 - Allowed **Christian missionaries** to operate in India for education and religious purposes.
 - Promoted **Western education** in British territories.
 - Empowered local governments to impose and collect taxes.
- **Charter Act of 1833:**
 - Made the **Governor-General of Bengal** the **Governor-General of India**.
 - The first one was **Lord William Bentick**.
 - Centralized legislative power in the hands of the Governor-General's Council.



- Ended the East India Company's commercial role, turning it into an **administrative body**.
- Provided for **open competition for civil services**, allowing Indians to compete, but the proposal was negated by opposition.
- **Charter Act of 1853:**
 - **Separated legislative and executive functions** of the Governor-General's Council.
 - Introduced a **Legislative Council**, which acted as a mini-parliament.
 - Open competition for recruitment to the **Indian Civil Services (ICS)**, allowing Indians to enter through exams.
 - For the first time, the **Company's rule was extended without a fixed period**, signaling an indefinite rule.
 - Introduced **local representation** in the legislative councils, with members nominated from Madras, Bombay, Bengal, and Agra.

The Crown Rule (1858–1947)



- **Government of India Act, 1858:**

- Abolished the East India Company; the British Crown took direct control.
- The **Governor-General** became the **Viceroy of India**.
- Created the office of **Secretary of State for India**, a British Cabinet member responsible for Indian affairs.
- Established a **15-member Council of India** to assist the Secretary of State.
- Abolished the **dual government system**, centralizing control under the Crown.

- **Indian Councils Act, 1861:**

- Began the inclusion of Indians in legislative councils.
- The **First three Indians** nominated by the Viceroy to the Legislative Council
 - The Raja of Benaras.
 - The Maharaja of Patiala.
 - Sir Dinkar Rao.



- Allowed **non-official Indian members** to join legislative councils.
- Initiated **decentralization**, restoring legislative powers to **Bombay and Madras**.

- Empowered the **Viceroy** to make rules for more efficient governance and issue **ordinances** during emergencies.
- **Indian Councils Act, 1892:**
 - Increased the number of **non-official members** in legislative councils.
 - Gave legislative councils the power to **discuss the budget** and address questions to the executive.
 - Allowed for the **nomination of members** by district boards, universities, and trade associations.
- **Indian Councils Act, 1909 (Morley-Minto Reforms):**
 - Enlarged the legislative councils both at the central and provincial levels.
 - Introduced the concept of **separate electorates for Muslims**, establishing communal representation.
 - **Indians** were allowed to join **executive councils** for the first time.
- **Government of India Act, 1919 (Montagu-Chelmsford Reforms):**
 - Introduced **dyarchy** in provinces, dividing subjects into **transferred** (handled by Indian ministers) and **reserved** (handled by British officials).
 - Expanded legislative councils and introduced **bicameralism** in provinces like Bengal and Madras.
 - Extended communal representation to **Sikhs, Indian Christians, and Anglo-Indians**.
- **Government of India Act, 1935:**
 - Introduced **provincial autonomy**: Governors had to act on the advice of ministers responsible to the provincial legislatures.
 - Established **bicameral legislatures** in several provinces.
 - Expanded communal representation to **Scheduled Castes, women, and labour**.
 - Provided for the establishment of the **Federal Court, Reserve Bank of India, and Public Service Commissions** at both federal and provincial levels.
- **Indian Independence Act, 1947:**
 - Ended British rule, creating two independent dominions: **India and Pakistan**.
 - Abolished the office of Viceroy and provided for **Governors-General** appointed by the respective dominion cabinets.
 - Empowered the **Constituent Assemblies** of both dominions to frame their constitutions.
 - Granted **princely states** the option to join India, Pakistan, or remain independent.